

**SUPERIOR COURT OF CALIFORNIA
COUNTY OF MARIN**

DATE: 08/28/26 TIME: 1:30 P.M. DEPT: L CASE NO: CV0007369

PRESIDING: HON. MARK A. TALAMANTES

REPORTER:

CLERK: M. GIL

PLAINTIFF: HAYDEN WILLIAMS

vs.

DEFENDANT: EMANUEL KOPSTEIN, ET
AL

NATURE OF PROCEEDINGS: MOTION – SUMMARY ADJUDICATION

RULING

Defendant Emanuel Kopstein’s motion for summary adjudication is denied. Defendant Cary Kopstein’s motion for summary judgment is granted. Plaintiff’s request for a continuance under Code of Civil Procedure Section 437c(h) is denied.

Allegations in the Amended Complaint

Plaintiff Jayden Williams alleges that on September 30, 2024, he was injured by a vehicle that was owned, maintained, insured, and/or controlled by Emanuel Kopstein (“Emanuel”). Emanuel entrusted the vehicle to Defendant Dejaivonnee Le Na Shonnee D Benard (“Benard”) and/or permitted its use by another.

Plaintiff names Emanuel individually and as Trustee of the CZM Family Trust, Benard, and Cary Kopstein (“Cary”), as defendants, and asserts a single cause of action for motor vehicle negligence.

Standard

The purpose of a motion for summary judgment or summary adjudication “is to provide courts with a mechanism to cut through the parties’ pleadings in order to determine whether, despite their allegations, trial is in fact necessary to resolve their dispute.” (*Aguilar v. Atlantic Richfield Co.* (2001) 25 Cal.4th 826, 843.) “Code of Civil Procedure section 437c, subdivision (c), requires the trial judge to grant summary judgment if all the evidence submitted, and ‘all inferences reasonably deducible from the evidence’ and uncontradicted by other inferences or evidence, show that there is no triable issue as to any material fact and that the moving party is entitled to judgment as a matter of law.” (*Adler v. Manor Healthcare Corp.* (1992) 7 Cal. App. 4th 1110, 1119.)

“On a motion for summary judgment, the initial burden is always on the moving party to make a prima facie showing that there are no triable issues of material fact.” (*Scalf v. D. B. Log Homes, Inc.* (2005) 128 Cal.App.4th 1510, 1519.) A defendant moving for summary judgment or summary adjudication “has met his or her burden of showing that a cause of action has no merit if the party has shown that one or more elements of the cause of action . . . cannot be established, or that there is a complete defense to the cause of action.” (Code Civ. Proc. § 437c(p)(2).) “Once the defendant . . . has met that burden, the burden shifts to the plaintiff . . . to show that a triable issue of one or more material facts exists as to the cause of action or a defense thereto.” (Code Civ. Proc. § 437c(p)(2).) “A triable issue of material fact exists if the evidence reasonably permits a trier of fact to find the contested fact in favor of the plaintiff in accordance with the applicable standard of proof.” (*Bakos v. Roach* (2025) 108 Cal.App.5th 390, 395.)

“When deciding whether to grant summary judgment, the court must consider all of the evidence set forth in the papers (except evidence to which the court has sustained an objection), as well as all reasonable inferences that may be drawn from that evidence, in the light most favorable to the party opposing summary judgment.” (*Avivi v. Centro Medico Urgente Medical Center* (2008) 159 Cal.App.4th 463, 467; Code Civ. Proc. § 437c(c).) The moving party’s evidence must be strictly construed, while the opposing party’s evidence must be liberally construed. (*Binder v. Aetna Life Ins. Co.* (1999) 75 Cal.App.4th 832, 838.) Any evidentiary doubts are resolved in favor of the opposing party. (*City of Santa Cruz v. Pacific Gas & Elec. Co.* (2000) 82 Cal.App.4th 1167, 1176.)

Evidentiary Objections

The Court does not rule on Plaintiff’s evidentiary objections as the evidence to which Plaintiff objects has no bearing on the Court’s ruling. (Code Civ. Proc. § 437c(q).)

The Kopstein Defendants

Emanuel Kopstein moves for summary adjudication as to (1) Plaintiff’s allegations of negligent entrustment; and (2) the limitation of liability under California Vehicle Code Section 17151. Cary Kopstein moves for summary judgment on the ground that there is no evidence she owned, controlled, entrusted, maintained, or operated the vehicle, or otherwise engaged in any conduct giving rise to liability in this action.

Emanuel’s Motion

Limitation of Liability

Emanuel’s motion for summary adjudication “that, absent any independent basis for liability, any potential liability against Emanuel Kopstein as the registered owner of the subject vehicle is limited pursuant to California Vehicle Code section 17151” is denied. (See Notice of Motion and Motion, p. 1:12-14.) The applicability of a statutory cap on a defendant’s potential liability is not a proper subject for a motion for summary adjudication. (See Code Civ. Proc. § 437c(f)(1).)

Defendants argue in their Reply that the motion is proper because they plead Section 17151 as an affirmative defense in their Answer, and a motion for summary adjudication can appropriately challenge an affirmative defense. Defendants submit a copy of their Answer with their Reply, attached as an exhibit to their counsel's declaration. Defendants did not make this argument anywhere in the moving papers. Defendants do not reference the fact that they asserted this section as an affirmative defense in their opening memorandum or in their Separate Statement. (See *California-American Water Co. v. Marina Coast Water Dist.* (2022) 86 Cal.App.5th 1272, 1297-1298 [all material facts must be in separate statement].) This is not an argument made in response to arguments raised in Plaintiff's Opposition and there is no reason Defendants could not have made this argument earlier.

The Court does not and cannot consider this new argument as Plaintiff has not been given a meaningful opportunity to respond. (See *Maleti v. Wickers* (2022) 82 Cal.App.5th 181, 227-228; *Regency Outdoor Advertising, Inc. v. Carolina Lanes, Inc.* (1995) 31 Cal.App.4th 1323, 1333.)

Negligent Entrustment

Emanuel's motion for summary adjudication as to Plaintiff's negligent entrustment theory is also denied. This argument consists of one of three theories (entrustment, permissive use, employment/agency) that Plaintiff asserts in connection with his single cause of action for motor vehicle negligence. (See Amended Complaint, MV-2(c)-(f).)

A party may move for summary adjudication of a cause of action relating to separate and distinct wrongful acts even though the complaint combines it with other wrongful acts in a single pleaded cause of action. (See *Blue Mountain Enterprises, LLC v. Owen* (2022) 74 Cal.App.5th 537, 549; *Lilienthal & Fowler v. Superior Court* (1993) 12 Cal.App.4th 1848, 855.) This rule does not apply here, as Plaintiff's negligence theories arise from the same operative facts (Emanuel's transfer of possession of the vehicle to Lambert, who then allowed it to be used by Benard) and are sub-theories under the Judicial Council form for a motor vehicle negligence cause of action. There are no "separate and distinct" wrongful acts alleged.¹

Because Emanuel's motion would not completely dispose of Plaintiff's motor vehicle negligence cause of action, the motion is denied. (See Code Civ. Proc. § 437c(f)(1).)

Cary's Motion

Cary argues that the evidentiary record shows she had no ownership interest in the vehicle, was not a party to the agreement between Emanuel and Lambert, and did not possess, control, maintain or operate the vehicle. (Defendants' Undisputed Material Facts ("UMF") 15-17.) She also did not give permission to any person to operate the vehicle and was not present at the time of the incident. (UMF 18, 19.) As a result, she could not entrust or permit another to use the vehicle or engage in any conduct that could subject her to liability.

¹ Defendants do not cite to either *Blue Mountain* or *Lilienthal*, both First District Court of Appeal decisions, in their papers. Instead, they cite to *Jen-Weld, Inc. v. Superior Court* (2005) 131 Cal.App.4th 853, in which the court did not discuss or even address the "separate and distinct" wrongful act analysis addressed in *Blue Mountain* and *Lilienthal*. The facts in *Jen-Weld* are also distinguishable from this case.

Plaintiff argues that Cary is identified as an “additional contact” on the agreement between Emanuel and Lambert, Lambert’s payments for the vehicle were directed to a Zelle account enrolled in Cary’s name, Emanuel’s texts state that Cary paid outstanding tolls, Defendants’ discovery responses identify Cary as a person with knowledge of the vehicle’s ownership, possession and use, Cary communicated with Lambert about the vehicle, and Cary was a named insured on the vehicle’s policy.

The facts presented by Plaintiff are insufficient to avoid summary judgment.

There is no evidence that Cary was an owner of the vehicle. Vehicle Code Section 17150, on which Plaintiff’s permissive use theory is based, applies by its terms only to an “owner of a motor vehicle”. Ownership is also an element of a negligent entrustment theory. (See *Tavares v. Zipcar, Inc.* (2026) 118 Cal.App.5th 219, 230 [“to hold a defendant liable for negligent entrustment, the plaintiff must prove that . . . the defendant was an owner of the vehicle operated by the driver”].) There is also no evidence that Cary employed Benard or Lambert or that they were an agent or employee acting within the scope of their agency for purposes of Plaintiff’s employment/agency theory under MV-2(b) or (e).

Plaintiff requests that he be allowed to conduct discovery under Section 437c(h) to show that the vehicle was community property, thereby making Cary an owner. However, a spouse who may own an interest in a vehicle based solely on a community property basis cannot be held liable for the other spouse’s negligence under Vehicle Code Section 17150, where the vehicle was registered in the name of the other spouse only. (*Shepardson v. McLellan* (1963) 59 Cal.2d 83, 87; *Hooper v. Romero* (1968) 262 Cal.App.2d 574, 578.)

Here, it is undisputed that the vehicle was registered to Emanuel only. (See Plaintiff’s Response to UMF 15 [“Undisputed that Cary Kopstein is not the registered owner”].) Cary therefore cannot be held liable for Emanuel’s alleged negligence under Section 17150 regardless of whether the vehicle was community property. Thus, the summary adjudication is granted.

Plaintiff’s request for a continuance to conduct this discovery is therefore denied. Plaintiff does not satisfy the requirements of Section 437c(h) in any event, as the declaration of Plaintiff’s counsel does not adequately address Plaintiff’s inability to obtain the discovery as to Cary earlier, or Plaintiff’s diligence to obtain such discovery. (See Declaration of Daniel Aguilar, ¶11; see also *Braganza v. Albertson’s LLC* (2021) 67 Cal.App.5th 144, 160.)

Parties must comply with Marin County Superior Court Local Rules, Rule 2.10(A), (B), which provides that if a party wants to present oral argument, the party must contact the Court at (415) 444-7046 and all opposing parties by 4:00 p.m. the court day preceding the scheduled hearing. Notice may be by telephone or in person to all other parties that argument is being requested (i.e., it is not necessary to speak with counsel or parties directly.) Unless the Court and all parties have been notified of a request to present oral argument, no oral argument will be permitted except by order of the Court. In the event no party requests oral argument in accordance with Rule 2.10(B), the tentative ruling shall become the order of the court.

IT IS ORDERED that evidentiary hearings shall be in-person in Department L. For routine appearances, the parties may access Department L for video conference via a link on the court website. Kindly turn your camera on when your case is called and make sure the party or lawyer making the appearance is properly identified on the screen.

FURTHER ORDERED that the parties are responsible for ensuring that they have a good connection and that they are available for the hearing while using the virtual remote courtroom. If the connection is inadequate, the Court may proceed with the hearing in the party's absence. If it is determined that you are diving your car during the hearing, you will be removed from the virtual courtroom. (Yes, this happens).

**SUPERIOR COURT OF CALIFORNIA
COUNTY OF MARIN**

DATE: 08/28/26 TIME: 1:30 P.M. DEPT: L CASE NO: CV0008098

PRESIDING: HON. MARK A. TALAMANTES

REPORTER:

CLERK: M. GIL

PLAINTIFF: MELODIE MICHELSON	
vs.	
DEFENDANT: MIA MORRIS, ET AL	

NATURE OF PROCEEDINGS: MOTION – RELIEVE COUNSEL

RULING

Counsel Daniel Raff filed a Motion to be relived as counsel on July 6, 2026, citing a breakdown in communications with his client, Defendant Jared Morris.

Defendant has not filed a response, nor was an opposition to the motion been filed by the Plaintiff. The failure to oppose is considered consent to the granting of the motion. (Cal. Rules of Court, rule 8.54(c); Local Rule Marin, Civil 2.8G.1.) The motion to be relieved as counsel is hereby GRANTED.

Parties must comply with Marin County Superior Court Local Rules, Rule 2.10(A), (B), which provides that if a party wants to present oral argument, the party must contact the Court at (415) 444-7046 and all opposing parties by 4:00 p.m. the court day preceding the scheduled hearing. Notice may be by telephone or in person to all other parties that argument is being requested (i.e., it is not necessary to speak with counsel or parties directly.) Unless the Court and all parties have been notified of a request to present oral argument, no oral argument will be permitted except by order of the Court. In the event no party requests oral argument in accordance with Rule 2.10(B), the tentative ruling shall become the order of the court.

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